TRUSTSTACK DPDP COMPASS

Legal Position Report

Mumbai University

For Counsel and the Data Protection Officer

As of	17 October 2026
Version	1
Basis	Provisional — assessment in progress
Exposure model	1.6.0
Generated	17 October 2026, 12:18 IST by Registrar (DPDP Programme Owner)

Where you stand

3. Children and lawful guardians (s.9)
Not yet assessed
Upper third: ₹133–200 crore

7. Any other provision
Exposed
Upper third: ₹33–50 crore

Requests past the Rules' ninety days
0
Rule 14(3).

Erasures overdue
1
s.8(7), Rule 8(3).

Two penalties can lead to blocking of public access to your service: after penalties in two or more instances, the Board may advise the Central Government to direct blocking (s.37).

Based on: The assessment in progress, “Mumbai University DPDP Compass Baseline” — provisional: 123 questions are still unanswered.

The processing register's gaps have never been generated.

Penalty heads 3 and 7

3. Additional obligations for children's data (and persons with disability who have a lawful guardian) (s.9) — ceiling ₹200 crore

Status: Not yet assessed. Indicative position: upper third, ₹133–200 crore (5 points).

- Applies because children's data is processed, and whether data of persons with disability who have a lawful guardian is processed is not yet known.
- No question that evidences this head has been answered yet, and no register gap is open for it.

Position factors, s.33(2): (b) Children's data is processed. +3; (b) Identity, financial or health documents are collected. +1; (a) A large number of Data Principals (a TrustStack trigger, not a statutory classification). +1.

7. Any other provision of the Act or the Rules (Any other provision) — ceiling ₹50 crore

Status: Exposed. Indicative position: upper third, ₹33–50 crore (5 points).

- 2 processors have no contract with DPDP clauses recorded — a processor is engaged only under a valid contract (s.8(2)).
- 1 retention schedule is past its end date with no erasure recorded (s.8(7)).
- 1 retention schedule has no end date recorded, so its erasure cannot be shown to follow (s.8(7)).
- Purpose, lawful basis and data minimisation has not been answered yet.
- Notice management has not been answered yet.
- Consent and consent withdrawal has not been answered yet.
- Data Principal rights has not been answered yet.
- Grievance redressal and contact publication has not been answered yet.
- Retention, erasure and archival has not been answered yet.
- Data accuracy and quality has not been answered yet.
- Vendor / Data Processor governance has not been answered yet.

Position factors, s.33(2): (b) Children's data is processed. +2; (b) Identity, financial or health documents are collected. +1; (a) A large number of Data Principals (a TrustStack trigger, not a statutory classification). +1; (a) Exposed rather than partly mitigated. +1.

Rights of the Data Principal and grievances (s.11–14, Rule 14)

	Count
Requests and grievances recorded (withdrawn and void included)	2
Open requests to exercise a right	0
Open grievances (s.13)	0
Open past TrustStack's 30-day target — a target, not a statutory period	0
Open past the ninety days the Rules allow (Rule 14(3))	0
Responded	2
...of which after the ninety days	0
Withdrawn by the person, or void	0

Request	Kind	Where it stands

No open request or grievance is past TrustStack's target or the Rules' ninety days.

The Rules set one period: a response within a reasonable period not exceeding ninety days of receipt, under the grievance redressal system the organisation publishes (Rule 14(3)); requests to exercise the other rights run through the same system. The 30-day response target is TrustStack's, not a statutory period. Requests are named by code and kind only: the person's details stay in the register.

Notice and consent (s.5, s.6, Rule 3)

Published privacy notice	Version	Published on
English	1	1 September 2026

The consent widget serves version 1; every consent records the notice version it was given against.

	Count
Data Principals with a consent record	2
Consent given (latest record)	1
Consent refused	0
Consent withdrawn (s.6(4))	1

Children and persons with disability (s.9, Rules 10–12)

	Count
Consents given on behalf of a child or a person with disability	0
...of which no verification of the parent or lawful guardian is recorded	0
Processing records with children's data — yes or not yet known	**8**

Retention and erasure (s.8(7), Rule 8)

	Count
Retention schedules	10
No end date recorded	**1**
Running	7
Ending in the next 30 days	0
Past the end date with no erasure that counts	**1**
Erased for the current cycle	1
Processing records with retention incomplete	**8**

Overdue erasure — processing record	End date	Note
ROPA-009	15 February 2026	No erasure recorded

An erasure counts only when it is complete — the processors were told to erase, or none held the data (s.8(7)(b)) — and was not recorded in error. No Third Schedule class is recorded, so Rule 8(1)–(2) do not apply: s.8(7) and Rule 8(3)'s one-year floor do.

Every organisation keeps personal data, traffic data and processing logs for at least one year from the last day the data was processed (Rule 8(3)), then erases them unless another law needs them kept longer, and has its processors erase them too (s.8(7)). During the year Rule 8(3) requires, the data is held only for the purposes in the Seventh Schedule — not used for the original purpose. The three-year period and the 48-hour notice of Rule 8(1)–(2) apply only to the classes in the Third Schedule.

AI systems — an enabling note, not a status

	Count
AI systems in use	1
...with no review recorded in the last twelve months (a TrustStack default)	**1**
...that track, behaviourally monitor or target advertising at children (s.9(3))	1
...of which no Fourth Schedule exemption is recorded	0
...where the children's question is not yet answered	0

Algorithmic due diligence binds a Significant Data Fiduciary (Rule 13(3)). For any other organisation this register is good practice, not a statutory record, and it never sets an exposure status. The twelve-month review interval is a TrustStack default. No Significant Data Fiduciary notification is recorded, so head 4 does not apply.

Rights and retention remediation still owed

Action	Where it comes from	Owner	Due	Status	Evidence
Erase the February 2025 webinar registrations from the events mailing tool and the shared drive	Retention register · ROPA-009 · When the purpose is served (s.8(7)(a))	MU IT/Security Lead	15 November 2026	Open	**No evidence attached**
Make corrections in the student record flow to the examination system	Rights and grievance register · GRV-2026-001 · Grievance (s.13, Rule 14(3))	Controller of Examinations (Department Owner)	15 December 2026	Open	**No evidence attached**

About this report

This report is a DPDP readiness and assessment output based on information, responses and evidence made available during the assessment. It is not a final legal opinion, statutory certification or guarantee of compliance. Final legal interpretation, policy approval and contractual sign-off should be reviewed by authorised legal counsel.

About the exposure figures

Exposure figures are indicative positions within statutory ceilings in the Schedule to the DPDP Act 2023, derived from your own assessment, register and remediation data under TrustStack exposure model 1.6.0. They are not a prediction of any decision of the Data Protection Board, which imposes a penalty only after an inquiry finds a breach significant and weighs the factors in section 33(2). They are not legal advice.

Not modelled: 5. Duties of a Data Principal (₹10,000) — A duty of the individual Data Principal, not of the organisation — never shown as the organisation's exposure. 6. Breach of a voluntary undertaking accepted by the Board (Up to the penalty for the breach the undertaking was about) — Applies only once the Board has accepted an undertaking from the organisation; none is recorded in TrustStack.

Statutory ceilings, not a predicted fine; penalties are per breach.

Counsel to confirm which provisions take effect on which date; until then TrustStack uses 13 May 2027 for every head.

Indicative positions use the factors in section 33(2) that TrustStack can observe. (d) Whether the breach brought a gain or avoided a loss — the Board's own judgement. (f) Whether the penalty is proportionate and effective — the Board's own judgement. (g) The likely impact of the penalty on the organisation — the Board's own judgement.